

File No.: EXP202303818

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were noted, leading to the initiation of actions under file number EXP202202261. The complaint was accepted for processing on April 11, 2022.

SECOND: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to supervisory authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the context of the investigative actions, two requests for information were sent to MULTIGAS ASESORES S.L., with NIF B06821060, regarding the complaint mentioned in the first section, requiring them to submit the information and documentation specified therein to this Agency within ten working days. The requests were registered for dispatch on February 2, 2023.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by MULTIGAS ASESORES S.L. on February 2, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, MULTIGAS ASESORES S.L. has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: On April 19, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MULTIGAS ASESORES S.L., for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from MULTIGAS ASESORES S.L.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Article 64.2.f) of the LPACAP -provision of which MULTIGAS ASESORES S.L. was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to MULTIGAS ASESORES S.L., and the sanction that could be imposed. Therefore, considering that MULTIGAS ASESORES S.L. has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SEVENTH: According to the report obtained from the AXESOR tool, the entity MULTIGAS ASESORES S.L. is an SME (Microenterprise), established in 2021, with a turnover of 335,187 euros in 2021.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

SECOND: MULTIGAS ASESORES S.L. has not responded to the requests for information made by this Agency within the timeframes granted for this in the context of the investigative actions of file EXP202202261.

THIRD: The notification of the initiation agreement of this sanctioning procedure was carried out in accordance with the provisions of the LPACAP, being received by the responsible party on April 27, 2023.

FOURTH: MULTIGAS ASESORES S.L. has not submitted any allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

in the Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the available evidence, it is considered that MULTIGAS ASESORES S.L. has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of MULTIGAS ASESORES S.L., the investigative power conferred to the control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to MULTIGAS ASESORES S.L., for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

"a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of their tasks; b) carry out investigations in the form of data protection audits; c) carry out a review of the certifications issued under Article 42, paragraph 7; d) notify the controller or the processor of the alleged infringements of this Regulation; e) obtain from the controller and the processor access to all personal data and all information necessary for the performance of their tasks; f) obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or the Member States."

III

Classification and Qualification of the Infringement

In accordance with the available evidence, the facts presented are deemed to constitute an infringement, attributable to MULTIGAS ASESORES S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "not providing access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of twenty million euros (€20,000,000) at most or, in the case of a company, an amount equivalent to four percent (4%) at most of the total annual global turnover of the previous financial year, opting for the higher amount. For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/5

“ñ) Not providing access to the personal data, information, premises, equipment, and means of processing that are required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on MULTIGAS ASESORES S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5.e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €500.00 (FIVE HUNDRED euros).

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on MULTIGAS ASESORES S.L., with NIF B06821060, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500.00 (FIVE HUNDRED euros).

SECOND: TO ORDER MULTIGAS ASESORES S.L. to, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, provide within ten working days the information requested in the requirements made in the context of the proceedings with file number EXP202202261 and to which reference has been made in the background of this resolution.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to MULTIGAS ASESORES S.L.

FOURTH: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/5

by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by

making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es